

25STCV00019 25STCV00019

County: los-angeles

Division: Civil Law and Motion

Department: 415

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Case Number: 25STCV00019 Hearing Date: July 16, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 16, 2026

CASE

25STCV00019

MOTION

Motion to Interplead Funds

MOVING PARTY

Defendant Austin Jay Curtis

OPPOSING PARTIES

Plaintiffs Eman Yashar and Davood Yashar

MOTION

Defendant Austin

Jay Curtis ("Defendant") contends Defendant filed a cross-complaint in interpleader with Plaintiffs Eman Yashar and Davood Yashar ("Plaintiffs") and Plaintiffs' former counsel, RK Law Group, as claimants. In their opposition to the motion, Plaintiffs reference "Defendant USAA General Indemnity Company's" motion for leave to deposit settlement funds through interpleader. The Court's file does not reflect either a cross-complaint having been filed by Defendant nor an interpleader motion filed by Defendant's purported carrier USAA.

Nonetheless, Defendant

now moves to interplead settlement funds with the Court, pursuant to the purported cross-complaint. However, as no such cross-complaint appears in the Court's file, the Court cannot grant this relief. Furthermore, according to Plaintiffs, Defendant disbursed the settlement funds. As such, the evidence before the Court suggests the ultimate issue is moot.

Defendant

is ordered to provide notice of the Court's ruling and to file proof of service of same.